24STCV08899 24STCV08899

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-08-03

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Case Number: 24STCV08899 Hearing Date: August 3, 2026 Dept: 617

Dept.

617

Date:

8-3-26

Case

#: 24STCV08899

Trial

Date: 9-21-26

CONTEST GOOD FAITH SETTLEMENT

MOVING

PARTY: Defendant, Enterprise Rent-A-Car Company of Los Angeles, LLC

RESPONDING

PARTY: Defendants, J.H. Snyder Development Company, LLC, J.H. Snyder Group II

LLC, and Downey Marketplace L.P.

RELIEF

REQUESTED

Motion

to Contest Application for Determination of Good Faith Settlement

SUMMARY

OF ACTION

Plaintiff Hector Michael Morales was riding his bicycle when he collided with another bicyclist exiting a parking lot. The impact caused him to fall off his bike in front of an oncoming city bus. Plaintiff was struck by the bus and is now quadriplegic. On April 9, 2024, Plaintiff sued Defendants J.H. Snyder Group II LLC, Downey Marketplace L.P., and Ralphs Grocery Company (Ralphs) for negligence. On October 1, 2024, Defendants Enterprise Rent-A-Car Company of Los Angeles, LLC (Enterprise) and J.H. Snyder Development Company, LLC were substituted in. Plaintiff alleges the collision was caused by the negligent maintenance of a fence and hedge line of sight obstruction.

RULING: Denied.

Evidentiary Objections: The Court does not rule on the evidentiary objections because they are immaterial to disposition of the motion.

Enterprise moves to contest J.H. Snyder Development Company, LLC, J.H. Snyder Group II LLC, and Downey Marketplace L.P.'s (Snyder Defendants) application for determination of good faith settlement. The Snyder Defendants and Plaintiff settled for $26 million. Enterprise argues the settlement amount is "grossly disproportionate" to the Snyder Defendants' proportionate liability for Plaintiff's damages, the settlement unjustly exposes Enterprise to a disproportionate share of any economic award to Plaintiff, and the settlement is a product of collusion. It further contends that the settlement amount is inadequate because the Snyder Defendants are solvent. The Snyder Defendants oppose the motion, maintaining the settlement was in good faith.[1]
Enterprise's motion is denied.

"[T]he intent and policies underlying section 877.6 require that a number of factors be taken into account including a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants." (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.)

The burden on a motion for determination of good faith settlement rests squarely on the party opposing the finding of good faith. (Code Civ. Proc., § 877.6, subd. (d); City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1261 ["Once there is a showing made by the settlor of the settlement, the burden of proof on the issue of good faith shifts to the nonsettlor who asserts that the settlement was not made in good faith"].) "The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settlor's liability to be." (City of Grand Terrace, supra, 192 Cal.App.3d at p. 1262.) "All affidavits relied upon as probative must state evidentiary facts; they must show facts and circumstances from which the ultimate fact sought to be proved may be deduced by the court." (Greshko v. County of Los Angeles (1987) 194 Cal.App.3d 822, 834.) "Affidavits or declarations setting forth only conclusions, opinions or ultimate facts are to be held insufficient; even an expert's opinion cannot rise to the dignity of substantial evidence if it is unsubstantiated by facts." (Id. at p. 834.)

Central to Enterprise's challenge is the proportionality between the settlement amount and the Snyder Defendants' potential liability. Enterprise contends the $26 million settlement amount is disproportionate to the Snyder Defendants' share of liability for Plaintiff's alleged $500 million plus in damages. It follows that the settlement unfairly exposes Enterprise to liability in excess of its proportionate share.

Enterprise's proportionality arguments are unavailing. First, the $500 million damages figure derives from Plaintiff's statement of damages, which lists a total of $463,150,000 in noneconomic damages. [Aspis Decl. ¶ 11, Ex. J.] But no evidence is presented supporting a potential noneconomic damages recovery close to this amount. Second, Enterprise contests the Snyder Defendants' apportionment of fault estimating their and Ralphs' potential liability at 20% and 0%, respectively. It argues the 20% allocated to Zendejas Landscape, the landscaping company hired by the Snyder Defendants to trim the hedge, properly belongs with the Snyder

Defendants and that Ralphs is at least 10% liable for Plaintiff's injuries. While it is true that a possessor of land "is answerable for the negligent failure of an independent contractor to put or maintain buildings and structures thereon in reasonably safe condition," this rule is limited to "buildings, structures or things which are an integral part thereof . . . ." (Knell v. Morris (1952) 39 Cal.2d 450, 456.) Enterprise presents no argument or authority that a hedge located in a parking lot comes within this rule. Furthermore, under Ralphs' lease agreement with Downey Marketplace, Downey Marketplace is responsible for "maintenance, care and replacement of shrubbery and other landscaping upon the Shopping Center and adjoining parkways." [Weinberger Decl. ¶ 16, Ex. 7, p. 22.] Enterprise thus fails to show lack of proportionality between the settlement amount and the Snyder Defendants' potential liability. Because the Snyder Defendants' financial condition or solvency are only relevant if the settlement amount is "disproportionately low," Enterprise's argument in this respect also fails. (Long Beach Memorial Medical Center v. Superior Court (2009) 172 Cal.App.4th 865, 874-75; see L.C. Rudd & Son, Inc. v. Superior Court (1997) 52 Cal.App.4th 742, 749-50 [discovery into financial condition denied where settlement was not "disproportionately low"].)

Enterprise's
collusion argument is likewise unpersuasive. It claims that the settling parties concocted a scheme whereby the Snyder Defendants and Ralphs settled their liability at a "heavily discounted price" and then acted to strengthen Plaintiff's case against Enterprise by inducing Enterprise employees, without knowledge of counsel, to trim the Chinese Elm tree near Enterprise's fence. Enterprise points to communications between its counsel and counsel for the Snyder Defendants and between the Snyder Defendants' PMQ, Julie Martin, and Enterprise employees regarding trimming of the tree. [Scandroli Decl. ¶ 2, Ex. 1; Cazares Decl. ¶ 9, Ex. A.] It also cites to Martin's deposition testimony where she stated that she spoke with counsel for the Snyder Defendants before sending her email. [Aspis Decl. ¶ 5, Ex. D: Martin Depo. pp. 59:15-60:2.] But Enterprise's collusion theory is speculative. Again, the settlement amount was not disproportionately low. Plaintiff was also not part of any communications with Enterprise. The evidence presented is indicative of a request to alleviate a potential safety concern rather than a scheme to cause Enterprise to unwittingly act against its own litigation interests. The settlement was therefore not a product of collusion.

The
application for determination of good faith settlement is therefore granted.

The motion contesting the application is denied.

Enterprise's
cross-complaint is dismissed as to the Snyder Defendants. (Norco Delivery Service, Inc. v. Owens-Corning Fiberglas, Inc. (1998) 64 Cal.App.4th 955, 964.)

Enterprise to give notic

[1] The
Snyder Defendants filed their opposition 2 court days late. (Code Civ. Proc., § 1005, subd. (b).) Because the Court finds no prejudice to Enterprise from the untimely filing, it considers the opposition in ruling on the instant motion.

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GOOD FAITH SETTLEMENT

MOVING
PARTY: Defendant, Ralphs Grocery Company

RESPONDING
PARTY: Defendant, Enterprise Rent-A-Car Company of Los Angeles, LLC

RELIEF
REQUESTED

Motion
for Determination of Good Faith Settlement

SUMMARY
OF ACTION

Plaintiff
Hector Michael Morales was riding his bicycle when he collided with another bicyclist exiting a parking lot. The impact caused him to fall off his bike in front of an oncoming city bus. Plaintiff was struck by the bus and is now quadriplegic. On April 9, 2024, Plaintiff sued Defendants J.H. Snyder Group II LLC, Downey Marketplace L.P., and Ralphs Grocery Company (Ralphs) for negligence. On October 1, 2024, Defendants Enterprise Rent-A-Car Company of Los Angeles, LLC (Enterprise) and J.H. Snyder Development Company, LLC were substituted in. Plaintiff alleges the collision was caused by the negligent maintenance of a fence and hedge line of sight obstruction.

RULING: Granted.

Ralphs
moves for determination of good faith settlement with Plaintiff. The parties agreed to a total settlement of $100,000. Enterprise opposes the motion, arguing the settlement amount is grossly disproportionate to Ralphs' potential liability, the settlement unjustly exposes Enterprise to a disproportionate share of any economic award to Plaintiff, the agreement is the product of collusion, and Ralphs is financially solvent well beyond the settlement amount. Ralphs' application is granted.

"[T]he
intent and policies underlying section 877.6 require that a number of factors be taken into account including a rough approximation of plaintiffs' total

recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants." (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.)

The burden on a motion for determination of good faith settlement rests squarely on the party opposing the finding of good faith. (Code Civ. Proc., § 877.6, subd. (d); City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1261 ["Once there is a showing made by the settlor of the settlement, the burden of proof on the issue of good faith shifts to the nonsettlor who asserts that the settlement was not made in good faith"].) "The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settlor's liability to be." (City of Grand Terrace, supra, 192 Cal.App.3d at p. 1262.) "All affidavits relied upon as probative must state evidentiary facts; they must show facts and circumstances from which the ultimate fact sought to be proved may be deduced by the court." (Greshko v. County of Los Angeles (1987) 194 Cal.App.3d 822, 834.) "Affidavits or declarations setting forth only conclusions, opinions or ultimate facts are to be held insufficient; even an expert's opinion cannot rise to the dignity of substantial evidence if it is unsubstantiated by facts." (Id. at p. 834.)

Enterprise's proportionality arguments are unavailing. Similar to its motion contesting the Snyder Defendants' application for determination of good faith settlement, Enterprise argues a lack of proportionality based on the unsubstantiated $500 million figure in Plaintiff's statement of damages and Ralphs' estimated apportionment of fault among the parties. Again, no evidence supports a noneconomic damages recovery close to $463,150,000 and Enterprise fails to explain how the nondelegable duties doctrine is applicable to a parking lot hedge such that Zendejas Landscape's estimated fault is properly allocable to the Snyder Defendants. [Aspis Decl. ¶ 16, Ex. O.] (Knell v. Morris (1952) 39 Cal.2d 450, 456.) And Ralphs' lease agreement with Downey Marketplace supports the no liability allocation because Downey Marketplace is responsible for “maintenance, care and replacement of shrubbery and other landscaping upon the Shopping Center and adjoining parkways.” [Stone Decl. ¶ 3, Ex. B, p. 22.] Enterprise therefore fails to show a lack of proportionality between the settlement amount and Ralphs’ estimated absence of liability. Because Ralphs’ financial condition or solvency are only relevant if the settlement amount is “disproportionately low,” Enterprise’s argument in this respect also fails. (Long Beach Memorial Medical Center v. Superior Court (2009) 172 Cal.App.4th 865, 874-75; see L.C. Rudd & Son, Inc. v. Superior Court (1997) 52 Cal.App.4th 742, 749-50 [discovery into financial condition denied where settlement was not “disproportionately low”].)

The settlement is also not a product of collusion. Enterprise again relies on a scheme amongst the settling parties involving settlement at a “heavily discounted price” and clandestine communication to Enterprise employees to trim the Chinese Elm tree without notice to counsel. Enterprise further points to Ralphs’ counsel seeking Plaintiff’s counsel’s permission to question Plaintiff at his deposition. [Aspis Decl. ¶ 18, Ex. R: Plaintiff’s Depo. p. 70:2-7, 9-19.][1] As explained in the Court’s ruling on Enterprise’s motion to contest, Enterprise’s theory is speculative because the settlement is not disproportionately low and the communications to Enterprise are indicative of a request to address a potential safety issue. The deposition exchange does not support Enterprise’s argument either. While Enterprise may take issue with Ralphs’ counsel’s deposition strategy, this does not transform the simple and civil exchange into evidence of a wrongful scheme. There is thus no support for Enterprise’s claim that the settling parties colluded to injure Enterprise’s interests in the litigation.

Ralphs’ application for determination of good faith settlement is therefore granted.

Enterprise’s cross-complaint is dismissed as to Ralphs. (Norco Delivery Service, Inc. v. Owens-Corning Fiberglas, Inc. (1998) 64 Cal.App.4th 955, 964.)

Ralphs to give notice.

[1] The purported problematic exchange consists of the following:

Stone: I have a few. I'm
happy to go whenever, good? You guys good with me going? Greg Stone here.

Lucas: Do you need to?

Stone: I don't know. You need
to tell me that I suppose.

Lucas: You're welcome to,
Greg. I don't know if it's necessary. But let me ask this. Hey, David, do you have
any additional questions on behalf of your client?

Weinberger: No, I don't.

Lucas: Okay.

Stone: I'll pass.

SUMMARY JUDGMENT

MOVING
PARTY: Defendant, Enterprise Rent-A-Car Company of Los Angeles, LLC

RESPONDING
PARTY: Plaintiff, Hector Michael Morales

RELIEF
REQUESTED

Motion
for Summary Judgment

SUMMARY
OF ACTION

Plaintiff
Hector Michael Morales was riding his bicycle when he collided with another
bicyclist exiting a parking lot. The impact caused him to fall off his bike in
front of an oncoming city bus. Plaintiff was struck by the bus and is now quadriplegic.

On April 9, 2024, Plaintiff sued Defendants J.H. Snyder Group II LLC, Downey Marketplace L.P., and Ralphs Grocery Company (Ralphs) for negligence. On October 1, 2024, Defendants Enterprise Rent-A-Car Company of Los Angeles, LLC (Enterprise) and J.H. Snyder Development Company, LLC were substituted in. Plaintiff alleges the collision was caused by the negligent maintenance of a fence and hedge line of sight obstruction.

RULING: Continued.

Defendant
Enterprise moves for summary judgment arguing that Plaintiff's claims fail as a matter of law. Plaintiff opposes the motion, citing a lack of a separate statement and maintaining the existence of triable issues of material facts. Enterprise's motion is continued to permit it to file a separate statement.

A
motion for summary judgment must be supported by "a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed." (Code Civ. Proc., § 437c, subd. (b)(1).) "Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for SAI and summary judgment to determine quickly and efficiently whether material facts are disputed." (United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 335.) "The failure to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denying the motion." (Code Civ. Proc., § 437c, subd. (b)(1).) "[I]t is only in the truly exceptional case involving a single, simple issue with minimal evidentiary support that a court will consider the merits of a motion unaccompanied by a separate statement." (Garcin, supra, 231 Cal.App.3d at p. 335.)

A
continuance is warranted here. This not a "truly exceptional" case where the Court can consider the merits of the motion in the absence of a separate statement. The motion involves volumes of evidence and complicated issues regarding Enterprise's control over the hedge (if any), the role its fence played in creating the obstruction, and causation. While continuing the motion necessitates a continuance of trial, the mere delay of trial does not compel an outright denial of the motion here. Trial has been continued only once on the Court's own motion, and the summary judgment motion was previously continued based on

Plaintiff's request. Enterprise also represents that it inadvertently failed to file its separate statement with its supporting papers. Under these circumstances, the interests of justice favor a continuance to permit Enterprise to set the asserted undisputed facts and supporting evidence properly before the Court and to allow Plaintiff to meet them. (Cf. Garcin, supra, 231 Cal.App.3d at p. 335 ["The failure to file a responsive separate statement usually results in a continuance of the motion to permit the filing of proper papers and an award of fees and costs as a condition of the continuance for purposes of complying with the statute"].)

The
motion is therefore continued to a date and time to be determined at the hearing. Enterprise is to file and serve its separate statement following the hearing. Plaintiff may file a responsive separate statement and any supplemental opposition 10 calendar days before the newly set hearing date. The opposition may not exceed 10 pages. Enterprise may file a 5-page supplemental reply 5 calendar days before the hearing date. These deadlines provide both parties adequate notice and opportunity to respond to the separate statements and supplemental papers. (See Weiss v. Chevron, U.S.A., Inc. (1988) 204 Cal.App.3d 1094, 1098-99.) Enterprise to pay Plaintiff's fees and costs incurred as a result of the continuance pursuant to a noticed motion.

Enterprise
to give notice.